Liepaja City Council

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BINDING REGULATIONS
Liepaja

22 August 2024 No 30
(Minutes No 8, § 16)

Port of Liepaja Regulations

Issued pursuant to Section 6 (1) of the Law on Ports

1. General provisions

1. The Port of Liepaja Regulations determine the internal order of the Port of Liepaja (referred to as the Port) and the safety of navigation in the water area of the Port.

2. Management of the Port is carried out by the Liepaja Special Economic Zone Authority (referred to as the Authority) following the Law on Ports, the Law on the Liepaja Special Economic Zone, the by-laws of the Liepaja Special Economic Zone Authority and other regulatory enactments.

3. The Port Regulations apply to all vessels visiting the Port and their crews, as well as to all natural persons and legal entities staying or operating in the Port territory.

4. Hydraulic structures of the Port – piers, wave breakers, shore reinforcements, berths, fairways, floating and stationary navigational aids, etc. – are in the possession or ownership of the Authority in accordance with the provisions of the regulatory enactments.

5. The operational management of vessel traffic in the Port and the Port access roads, as well as the control of the safety of navigation in the Port, is ensured by the Harbour Master.

6. The construction of high-rise buildings, erection of bright advertising lights, lighting masts and other lighting equipment which may interfere with the visibility of navigational signs and vessel traffic in the Port is coordinated with the Harbour Master and the state limited liability company “Latvijas Jūras administrācija” (referred to as the Maritime Administration). Works on submarine cables, communications and hydraulic structures and all subsea works in the Port shall be carried out only with the permission of the Authority.

7. The shipowner shall be liable for any damage caused by the ship to the Port’s hydraulic structures, navigational aids, Port communications and equipment, legal entities or natural persons in the Port territory, by paying the losses or by issuing a guarantee to cover the losses.

8. The Authority studies the demand for and supply of port services and provide a package of port services by contracting with business operators or by providing such services itself or through a legally autonomous entity under its control in a similar way to the way it controls its own entities, following the Regulations (EU) 2017/352 of the European Parliament and of the Council of 15 February 2017 establishing a framework for the provision of port services and common rules on financial transparency of ports.

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9. Any person who does not have the appropriate authority (licence) and business operators who do not have a contract with the Authority are prohibited to carry out any type of activity in the Port.

2. Terms and abbreviations used in the Regulations

10. Abbreviations used in the Port Regulations:

10.1. SOLAS Convention means the International Convention for the Safety of Life at Sea, 1974, and its 1988 Protocol;

10.2. MARPOL Convention means the International Convention for the Prevention of Pollution from Ships, 1973, and its 1978 Protocol;

10.3. COLREG Convention means the 1972 Convention on the International Regulationss for Preventing Collisions at Sea;

10.4. ISPS Code means the International Ship and Port Facility Code;

10.5. OKD means the Harbour Master's Office;

10.6. KSD means the Vessel Traffic Service;

10.7. LSEZ means the Liepaja Special Economic Zone;

10.8. PTEN means the Technical Operation Regulations for Port Berths;

10.9. SKLOIS means the International Freight Logistics and Port Information System;

10.10. VUGD means the State Fire and Rescue Service;

10.11. MRCC means the Maritime Search and Rescue Coordination Centre;

10.12. Website of the Authority: www.liepaja-sez.lv

11. Terms used in the Port Regulations:

11.1 Ship – any vessel – an engineering device designed for navigation;

11.2 Tanker means a vessel of special design designed and used for carriage of liquid cargoes;

11.3 Port fleet vessel means a vessel performing service functions in a harbour – tug, pilot, barge, floating crane, bunker, sewage, bilge and garbage collector, dredger and other ships providing certain services in a harbour on a legal basis;

11.4 Dredging vessel means a vessel and floating structures engaged in dredging operations in the Port;

11.5 Passenger ship means a ship or high-speed craft as defined in SOLAS Chapter X, Regulations 1, carrying more than 12 passengers;

11.6 Small craft means any vessel, including those intended for sport and recreation (pleasure boat, cutter, sailing yacht, etc.) whose length is less than 24 m;

11.7 Escort tug means a tug accompanying a vessel and ready for towing and/or pushing operations;

11.8 Unmanned ship means a vessel, floating structure (including barge, hull, etc.) which is not permanently manned;

11.9 Ship's agent means a person engaged in the business of ship agency in accordance with the requirements of the Maritime Code and performing the functions specified in the regulatory enactments on port formalities as an authorised user of SKLOIS;

11.10 Dangerous and polluting cargoes mean dangerous and polluting cargoes as defined in the Maritime Administration and Marine Safety Law and the regulatory enactments on the movement of dangerous and polluting cargoes in ports, as well as

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empty containers that have previously contained dangerous cargoes;

11.11 Maximum draught means the maximum permitted draught of the vessel in metres from the long-term mean sea level in the Baltic Sea vertical reference system BSCD 2000 (LAS 2000.5);

11.12 Altitude reference systems mean BAS-77 (Baltic Normal Altitude System) and BSCD 2000 / LAS 2000,5 (Baltic Sea Vertical Reference System / Latvian Normal Altitude System);

11.13 Berth user means the owner, lessee or occupier of a berth who carries out economic activities on the berth or other operation of the berth;

11.14 Length overall (LOA) means the largest length of a vessel, expressed in metres;

11.15 Helsinki Convention means the 1992 Convention on the Protection of the Marine Environment of the Baltic Sea Region;

11.16 Cargo operation means loading and/or unloading of cargo.

3. Port limits

12. The Port boundaries are defined in the regulatory enactments of the Port of Liepaja.

13. The Port water area includes the following Port areas: Outer Roadstead, Inner Harbour (internal roadstead), Freeport, Winter Harbour, Pilot Canal, Trade Canal (up to the tramway bridge) and Karosta Canal (including the Tosmare Basin). The Authority publishes information on the boundaries of the Port area and specialisation of berths on the Authority's website.

4. Use of immovable property/ Ship routes and berth data

14. The technical aids to navigation of the fairways in the Port comply with the system defined by the International Association of Marine Aids to Navigation and Lighthouse Authorities (IALA) for Region "A".

15. The Port berths and land, excluding private property, are leased to the berth operator. The rights and obligations of the berth operator and the relationship between the berth operator and the Authority are governed by the reciprocal agreement, the PTEN and this Regulations.

16. In addition to the obligations specified in the lease agreement, the berth operator shall be responsible for:

16.1 The technical condition of the berths and other immovable property placed at its disposal, the necessary lighting, including permanent lighting during the dark hours of the day, their maintenance in order, compliance with technical operation, fire safety, environmental protection, labour protection, sanitary and other applicable Regulations and requirements. In the event of damage being detected, it shall be reported immediately to the KSD;

16.2 Timely preparation of the berth for mooring and cargo operations, as well as the management of ship-generated waste and informing the Port services through the ship's agents of the berth's readiness to receive ships at the berth;

16.3 Providing access roads for fire-fighting and other emergency vehicles to access vessels moored at the berth (unloading of cargo and parking of vehicles within such access roads is prohibited);

16.4 The distance between the cargo and the berth cordon may not be less than 2.5 m, except in berths not intended for cargo operations and in the Liepaja Marina.

17. The Authority monitors compliance by a berth operator with the requirements

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specified in paragraph 16. In case of non-compliance, the Harbour Master may prohibit mooring of vessels at the relevant berth.

18. The maximum sizes and draughts for mooring vessels at berths are determined by orders of the Harbour Master, based on the established technical parameters and actual technical condition of the berths, water depths, weather forecasts and any other information relating to navigational safety. The orders of the Harbour Master are published on the website of the Authority.

19. Annex to this Regulations specify the technical characteristics of the berths. The berth specialisation is published on the Authority's website.

20. Vessel cargo operations are subject to the authorisation of the berth user. The use of berths for vessels not engaged in cargo operations on the berth is permitted only after written agreement with the Authority and the berth user.

21. At the Port's non-leased berths, berthing, changing of ships' crews, provisioning or cargo operations are permitted only by separate order of the Authority.

22. The Authority shall have the right to require the operator of the cargo berths to submit the records of the underwater survey carried out by divers in the mooring zone of the vessel.

5. Vessel traffic in the Port water area

5.1. Provision of information on arrivals, departures and berthing of ships

23. The KSD is a unit of OKD that organises and controls vessel traffic in the Port water area and provides services to traffic around-the-clock, considering the requirements of international maritime organisations.

24. The area of operation of the KSD is the Port water area.

25. OKD regularly monitors compliance with the conditions and obligations specified in the Regulations on port formalities.

26. Vessels of more than 300 gross tonnage notify the exact time of arrival to the KSD on VHF channel 11 not later than two hours before arriving at the reception safe water light buoy "A".

27. In the event of a vessel being refloated, the vessel or the ship's agent, on the basis of information provided by the berth operator that the berth is ready to receive the vessel, informs OKD and, if necessary, the other responsible authorities concerned in writing at least two hours in advance of the time and place of the re-mooring of the vessel.

28. A vessel of less than 300 gross tonnage within three nautical miles of a Port gate in Channel 11 of the VHF obtains permission from the KSD to enter the Port.

29. A vessel may leave and enter the Port without completing the port formalities and by submitting or notifying the KSD and the State Border Guard structural unit only of the crew and passenger lists on board, if necessary to assist ships in distress, in search and rescue operations, and upon the order of the Harbour Master, in emergencies.

5.2. Communication in Port

30. All vessels, including small craft, shall maintain constant radio communication on very high frequency (VHF) channels 11 and 16 at all times.

31. Channel 11 of the VHF is used for traffic management. In the Port, it may only be used for organising vessel traffic and hailing vessels.

32. The pilot selects a communication-free VHF 09 or channel 69 for communication with the tugs and the person on the berth responsible for readiness to receive the vessel.

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33. The Port fleet vessels, as well as vessels engaged in commercial activities in the Port water area, shall be equipped with Automatic Identification System (AIS) (minimum category B) and are allowed to move in the Port water area only with the AIS switched on.

34. Information on the telephone numbers and other communication channels of the Port and public services shall be provided by the operator of the KSD and is also available on the website of the Authority.

35. Contacts for Port and other services:

Subscriber	Phone	E-mail	VHF	VHF call sign
KSD	+371 63425180 (24/7)	vts@lsez.lv	11,16	“Liepajas satiksme”, namely,
Port control	+371 63426127	uzraugi@lsez.lv	11	“Liepajas ostas kontrole”, namely, “Liepaja Port Control”
Pilot service	-		11	“Liepaja Pilot”
Port security	+371 63420116		-	-
MRCC	115 (emergency)		16	“Riga Rescue Radio”

5.3. Pilotage services

36. Pilotage services are compulsory for ships of 60 metres and more in length overall (LOA) or 700 gross tonnage and for tankers, passenger ships, ships with dangerous and polluting cargoes and is provided in accordance with the provisions of the Maritime Administration and Marine Safety Law and the regulations on pilots.

37. Other vessels, regardless of their characteristics (including vessels using tug services), may also request pilotage services.

38. The need for the use of pilots for Port fleet vessels shall be determined by the Harbour master’s in writing on a case-by-case basis.

39. Pilotage services at the port are available 24 hours a day.

40. The presence of a pilot on board shall not relieve the Master of the vessel of his/her responsibility for the safe navigation of the vessel.

41. Embarkation and disembarkation of a pilot takes place in accordance with SOLAS Convention Chapter V, Paragraph 23.

42. Pilotage services shall be requested by the ship’s agent by sending an Application Form in writing to the KSD not later than two hours before the scheduled time of the pilotage service. Not later than one hour before the time specified in the Application, the ship’s agent confirms, changes the time (by sending a new Application) or cancels the pilotage service. The relevant Application Forms are published on the website of the Authority.

43. If the vessel is not ready to use the requested pilotage service within 30 minutes of the time specified in the Application, the pilot shall have the right to disembark the vessel. In such case, the vessel shall be deemed to have waived pilotage services, and the Master or the ship’s agent shall sign the pilotage service receipt and pay for pilotage services in line with the Port of Liepaja fees approved by the LSEZ Board.

44. The pilot shall embark or disembark a vessel at the following coordinates:

A (Alfa) 56˚ 30,40’ N ; 020˚ 49,80’ E

B (Bravo) 56˚ 34,80’ N ; 020˚ 56,00’ E

C (Charlie) 56˚ 32,40’ N ; 020˚ 58,60’ E

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45. In difficult hydro-meteorological conditions, when embarkation or disembarkation of the pilot at the locations referred to in Paragraph 43 of the Regulations is not possible, the pilot may change the embarkation/disembarkation location in agreement with the Master and the KSD.

46. If the pilot and their apprentice (if any) cannot disembark in the cases referred to in Paragraph 44 of the Regulations, due to adverse weather or other circumstances, the pilot and their apprentice may remain on board until a safe point of disembarkation, subject to prior agreement with the Harbour Master and a letter of guarantee from the ship's agent to return the pilot and their apprentice to the Port. In such case, the cost of services, all return and accommodation expenses shall be borne by the shipowner in line with the Port of Liepaja fees approved by the LSEZ Board.

47. A vessel whose Master holds a valid pilotage service exemption certificate may be exempted from pilotage services.

48. For a ship's Master to receive a certificate of exemption from the obligation to use pilotage services, he/she shall visit the Port with the particular ship (or a technically equivalent ship) 10 times during a year, using pilotage services. The number of Port visits may be reduced on a case-by-case basis.

49. Foreign warships, service vessels for training, sports, charitable missions and other vessels may be exempted from pilotage services by written order of the Harbour Master on a case-by-case basis.

50. The Harbour Master may require the use of pilotage service, including for exempted ships, considering existing weather conditions or any other factors in the Port affecting the safety of navigation.

51. If, in the pilot's opinion, an emergency may arise because of improper actions by the Master or crew or due to the technical condition of the vessel, the pilot shall notify the Master and report the KSD and the Harbour Master for a decision.

52. In difficult hydro-meteorological conditions, the pilot, in agreement with the Masters of the vessels, shall have the right to pilot one or more vessels in the keel of the pilot vessel, maintaining radio communication with them and with the KSD. All recipients of this service shall pay a full pilotage service fee.

53. If material damage is caused to the ship or to the berth during the pilotage services, the shipowner shall be liable.

54. OKD shall not liable for delays of the pilotage service due to unforeseen circumstances, adverse weather conditions or incorrect information.

5.4. Vessels at anchor

55. Anchorage of a vessel in the Port water area shall be determined by the KSD.

56. Vessels in the Port water area are permitted to anchor in the following anchorages, which are limited by lines between points with the following coordinates:

56.1 The ship's anchorage (L 1) shall be used for vessels with draught up to 5 m:

56° 30.00' N 020° 53.00' E,

56° 30.00' N 020° 56.00' E,

56° 30.20' N 020° 53.00' E,

56° 31.00' N 020° 56.00' E;

56.2 The ship's anchorage (L 2) shall be used for vessels with draught up to 6 m:

56° 31.20' N 020° 50.00' E,

56° 31.60' N 020° 52.00' E,

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56° 33.00’ N 020° 50.10’ E,

56° 33.00’ N 020° 52.00’ E;

56.3 The ship’s anchorage (L 3) shall be used for all ships:

56° 30.00’ N 020° 43.20’ E,

56° 31.20’ N 020° 48.00’ E,

56° 33.20’ N 020° 44.80’ E,

56° 33.20’ N 020° 48.00’ E.

57. In certain cases, with the permission of the KSD, a vessel may anchor in the Inner Harbour North of the parallel 56° 32.80’ N.

58. Launching boats from moored vessels is only allowed with the permission of the KSD.

59. The main engine of vessels moored on an internal raid shall be permanently ready for immediate use.

60. Vessels anchored at the internal roadstead shall immediately leave the internal roadstead at the request of the KSD.

61. Anchoring in fairways is prohibited.

5.5. Vessel traffic and navigation safety in the Port water area

62. Vessels are not allowed to move in the Port without the permission of the KSD. Only the vessel traffic control centre may authorise a movement. If the vessel does not start moving within 15 minutes, the movement authorisation shall be reapplied for.

63. All traffic participants shall be bound by the KSD’s orders on the order of traffic and the use of anchorages.

64. The KSD shall organise the vessel traffic according to their arrival or readiness to leave the Port. Priority for traffic in the Port shall be, as follows:

64.1 Ships in distress and vessels for provision of assistance;

64.2 State service vessels of the Republic of Latvia performing official duties;

64.3 Passenger and cargo – passenger vessels;

64.4 Liner vessels engaged on regular voyages to the Port and whose liner status has been approved by the Authority;

64.5 Cargo vessels arriving to receive or transfer cargo in the Karosta Canal and the Tosmare Basin;

64.6 Cargo vessels arriving to receive or transfer cargo in Freeport, Winter Harbour, the Inner Harbour and the Trade Canal;

64.7 Vessels arriving in the Port for repairs or disposal.

65. In certain cases, the Harbour Master may change the sequence of vessel traffic after assessing the situation.

66. Vessel movement in the Port water area shall be permitted only under the direct control of the Master of the relevant vessel.

67. A vessel, as well as any other floating craft, when navigating in the Port water area, shall maintain a safe speed that does not endanger the stay and operation of other floating craft, the safety of the structures and installations of the Port and ensure the manoeuvrability of the vessel. When navigating in the Trade Canal, the vessel’s speed must not exceed five knots.

68. When moving in the Port water area, the vessel’s list may not exceed 3° and

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the trim may not be bigger than specified in the vessel's stability information.

69. Vessels intended to be towed into the Port by tug or other vessel may be admitted to the Port only after the berth operator at whose berth the vessel is intended to be moored has approved in writing the entry of such vessel and its mooring, and the towing plan has been agreed with the Harbour Master.

70. Vessel's anchors shall be ready for immediate use when moving in the Port water area.

71. Anchoring is prohibited in the route areas of submarine cables or other submarine systems and 100 m on either side of them. Utility owners shall post prominent warning signs in such areas, which shall be illuminated during the dark hours.

72. KSD issues navigational warnings in the Port water area as well as hydrometeorological warnings immediately upon their receipt.

73. Passengers may only be carried in the Post water area by specially designed vessels with appropriate documentation and life-saving equipment.

74. Vessel traffic in the Port may be restricted in the following circumstances:

74.1 When the wind speed exceeds 14 m/s;

74.2 Where the visibility is less than three cable lengths (0,3 nautical miles).

75. Navigation restrictions in areas of the Port water area and at the berths are determined by the orders of the Harbour Master.

76. The Harbour Master may restrict or authorise vessel traffic based on actual hydro-meteorological or other conditions affecting the safety of navigation.

77. The permissible draughts of vessels shall be determined by order of the Harbour Master based on the current depth measurements of the Port.

78. There is one-way traffic on the fairways in the Port water area. After assessing the situation and considering the requirements of maritime safety, the KSD operator may, in certain cases, allow two-way traffic in agreement with the ship Masters and pilots.

79. A small craft without a KSD permit shall be prohibited from the Winter Harbour, Freeport, Karosta Canal and Tosmare Basin.

80. Small craft traffic in the Port shall be conducted in a way as not to interfere with vessels using the fairways. It is prohibited to cross the vessel's course closer than three cable lengths from the bow.

81. All vessels, including sailing vessels and yachts, are permitted to navigate in the Port water area only using a mechanical engine.

82. Unmanned vessels operating in the Port water area shall be manned for safe mooring, cargo, repair and other operations.

83. The simultaneous mooring of vessels at adjacent berths is prohibited.

84. The following turn-around points have been identified in the Port:

84.1 In the Trade Canal, for vessels of 60 m or less in length;

84.2 At the junction of the Trade Canal and the Winter Harbour, for vessels up to 140 m in length;

84.3 In the Karosta Canal, opposite berth No 27, for vessels not exceeding 165 m in length;

84.4 In the Freeport, for vessels of 240 m in length or less;

84.5 In the Inner Harbour, for vessels not exceeding 240 m in length.

85. In ice conditions, the traffic in the Port water area shall be organised following the orders of the Harbour Master.

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86. Video and audio recordings made by the KSD shall be the property of the Authority and shall be stored for 72 hours. Video and audio recording information shall be used for official purposes only.

87. Vessels shall be brought in and out of berths used by ship repair companies by pilots. A marine specialist (a specialist certified in line with regulatory enactments who has obtained a certificate of exemption from the obligation to use piloting services) of a ship repair company shall be allowed to manage ship repair related movements (e.g. re-mooring, towage, etc.) between berths or floating docks used by the same ship repair company. If the berth or floating dock used by the respective ship repair company is in different areas of the Port, the movement of the vessel shall be controlled by the pilot.

88. All types of underwater works in the Port water area shall be approved by OKD by submitting an Application Form (a sample has been published on the Authority's website).

89. KSD must be informed when diving works are started and completed.

5.6. Vessel berthing in the Port – berth preparation and operation

90. The berth operator shall comply with the PTEN and ensure a safe technical operation of berths and safe berthing and mooring of vessels.

91. The berth operator shall prepare the berths for servicing vessels before the arrival of the vessel. Mooring at unprepared berths is prohibited.

92. Mooring at the Port berth is prohibited without the permission of the berth owner or operator.

93. The number and position of mooring lines to ensure safe berthing of the vessel shall be determined by the Master in consultation with the pilot (if pilotage service is used) and the berth operator's representative, who is responsible for the position of the lines following the technical documentation/mooring diagrams for the berth. The lines must be provided with shields to prevent movement of rodents.

94. The safe presence of an unmanned vessel at a berth shall be the responsibility of the vessel operator and the berth operator.

95. Mooring a ship alongside another ship shall be permitted only after coordination with the ship to which it is planned to moor and with a written permission of the Harbour Master. Harbour Master's authorisation shall not be required for the Port fleet vessels.

96. The number of crew on board a vessel while in the Port water area shall be sufficient to ensure safe berthing and mooring of the vessel. The vessel shall be in a condition and supplied with sufficient supplies to ensure seaworthiness and fire safety.

97. Vessels with dangerous and polluting cargoes must be ready to leave the Port immediately.

98. Launching of boats from vessels shall be subject to authorisation by the KSD.

99. When at berth, repairs to the main engine and steering gear shall only be permitted with the written consent of the Harbour Master and the berth operator.

100. Vessels shall be fitted with a lighted gangway at their berths, under which a safety net needs to be fixed. There must be a guard at the gangway, a lifebuoy with a line.

101. The outer side of a vessel at berth shall be illuminated during dark hours.

102. A vessel at berth may connect to shore communications only with the permission of the berth operator.

103. While at berth or at anchor, it shall be prohibited to project overboard any

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movable structure unless in connection with cargo operations or other reasonable activity.

104. A vessel shall be permitted to make a readiness check while at berth by running the main engine with the propeller engaged only at minimum speed and not for more than one minute.

105. The Master of the vessel shall immediately report to the KSD all accidents involving persons on board, as well as all shipping accidents, fires, spills of fuel or lubricants, loss or leakage of cargo, equipment or supplies overboard, damage to other vessels, Port structures or navigational aids.

106. Mooring of vessels in a second hull shall be prohibited if:

106.1 The vessel is fumigating;

106.2 Dangerous or polluting goods or residues of such goods are on board.

107. Mooring of the Port fleet vessels to vessels carrying dangerous and polluting goods for cargo operations shall only be allowed with the permission of the KSD.

108. The berth operator shall provide:

108.1 By radio, a representative responsible for readiness to receive the vessel and the exact berthing position;

108.2 The number of mooring staff required for the safe mooring of the vessel according to the size of the vessel, but not less than two mooring men;

108.3 That no unauthorised persons are within 10 m of the berth cordon line during mooring operations.

109. The berth operator shall be responsible for maintaining the depth of the water near the berths within a 30 m wide strip along the berth.

110. To ensure the safety of the mooring manoeuvre, the minimum free area of the berth shall be at least 20% bigger than the length overall (LOA) of the vessel to be moored.

111. If a storm warning is received, the Master of the vessel shall take additional measures to keep the vessel safely moored.

6. Harbour Master

112. The Harbour Master is a government official who, under the Law on Ports, the Maritime Administration and Marine Safety Law, other applicable laws and enactments and the Regulations, organises and controls vessel traffic in the Port and the Port access roads, and performs maritime safety control functions in respect of vessel traffic in the Port, the Port water area, fairways, berths and terminals.

113. The orders of the Harbour Master relating to safety of navigation and life-saving measures shall be binding on all vessels, owners, possessors and lessees of berths and land, as well as other legal entities and natural persons in the Port. The Port Regulations does not limit the scope of authority of the Harbour Master to issue such orders.

114. The Harbour Master shall have the right to:

114.1 Prohibit a ship from leaving the Port for not more than 72 hours if the ship is involved in a marine casualty, has caused damage to Port property or has caused pollution (in cases where it is not possible to obtain a court order for the arrest of the ship expeditiously);

114.2 Request the ship to return to the Port if the ship has gone to sea without

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the permission of the OKD, if necessary, requesting the Naval Coast Guard Service of the National Armed Forces to inspect and detain the ship in accordance with the regulatory enactments on the procedure for control, inspection and detention of ships in Latvian waters;

114.3 Take operational decisions in emergencies involving the ship when there is a threat to the ship, persons, the environment, the Port facility or other vessels;

114.4 If necessary, to require the ship's agent to submit the ship's documents required by international laws and Regulations.

115. Any challenge or appeal against the orders of the Harbour Master shall not suspend their performance.

116. Damage caused by unjustified detention or arrest of a ship shall be the responsibility of the person who requested the respective detention or arrest.

7. Tugboat activity in the Port water area

117. In certain areas of the Port, the minimum requirements for the use of tugs shall be specified in the orders of the Harbour Master published on the website of the Authority; in other cases, the number of tugs required for the vessel, considering the capacity of the tugs, shall be determined by the ship's Master in agreement with the pilot following the technical equipment of the vessel, actual weather conditions or other factors that may affect safe manoeuvring of the vessel, as well as in compliance with the principles of good seamanship.

118. In case of disagreement, the number and capacity of tugs shall be determined by the Harbour Master.

119. The Master of the towed vessel manages the operation of the tugs, determines the type and extent of tug services required and is responsible for the safety of the tugs.

120. When towing an unmanned vessel, the master of the tug whose towing line is secured at the bow of the vessel being towed shall oversee the towing operation.

121. The vessel or the ship's agent shall order the tug in good time, but no later than two hours before it is to be used.

122. The vessel or the ship's agent applies for a tug service to the tug service provider by informing the KSD.

123. Tugs in the Port must be on standby during the storm warning.

8. Carrying out works in the Port water area

124. Any work in the Port water area involving dredging or depth maintenance, submarine cables or submarine communications, hydraulic structures, etc., shall be carried out in line with the regulatory enactments, subject to a prior written approval of the Authority and the Harbour Master.

125. Before starting the works, the works manager agrees the work performance procedure in writing with OKD.

126. Any changes in the work process shall be reported promptly by the works manager to the KSD.

127. Vessels shall with the provisions of the COLREG Convention and the requirements for radio communications in the Port specified in Chapter 5.2 of these Regulations when carrying out works in the port water area. All vessels approaching a dredging vessel shall proceed as required by the COLREG Convention unless

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otherwise notified.

128. When carrying out works in the port water area, the vessels, as well as structures, must be illuminated during the dark hours of the day.

9. Fire safety in the Port

129. Fire safety in the respective berth, terminal or Port area is the responsibility of the owner or the berth operator.

130. All persons operating or staying in the Port territory comply with the fire safety laws and Regulations.

131. Fire safety on board a vessel in the Port water area shall be the responsibility of the Master.

132. Vessels shall have their fire-fighting systems and equipment in working order and ready for immediate use when in the Port water area.

133. In the event of fire on board, the ship's watch shall sound the alarm and organise fire-fighting operations to the extent possible, report to the VUGD, MRCC and KSD.

134. If a fire is detected in the Port territory, the individual discovering it shall immediately notify the VUGD by calling emergency number 112, inform the berth operator and start the fire extinguishing with all available means. Upon discovery or receiving notification of a fire, the berth operator shall raise the alarm and organise fire-fighting.

135. In the event of a fire in the Port territory, the vessel must be prepared to leave the danger area.

136. Permission to carry out temporary fire-hazardous work on vessels which are not at berths used by repairers shall be granted by the Master of the vessel in agreement with OKD. If the ship is at a terminal berth, the authorisation for fire-hazardous work must be additionally agreed upon with the terminal.

137. Any work involving a fire hazard is prohibited:

137.1 On board the vessels at berths of terminals for the transhipment of gas, oil and petroleum products;

137.2 On ships carrying dangerous and polluting goods;

137.3 On a berth when a ship carrying dangerous or polluting goods is at the berth;

137.4 During bunkering.

138. The berth operator shall ensure that cargo is stowed in a manner as to allow access to cargo and fire-fighting equipment. Escape routes must be kept clear. Clear access to fire hydrants on berths shall be always ensured.

10. Bunkering

139. Vessels engaged in bunkering shall hoist the signal flag "Bravo" during daylight hours and turn on a red all-round light during dark hours. Such requirements shall also apply during loading or unloading of dangerous and polluting liquid cargo.

140. For vessels with dangerous and polluting liquid cargoes, bunkering must be carried out before or after cargo operations.

141. Bunkering shall be carried out by vessels at locations allowed by the Authority from shore-based fixed installations, bunkering vessels or tanker trucks. The

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filling of oil from tanker trucks may be carried out by vessels at all berths, subject to the agreement with the berth operator.

142. Bunkering vessels, shore-based fixed bunkering facilities and tanker trucks shall be equipped and their personnel trained in accordance with the requirements of regulatory enactments to ensure prevention of environmental pollution hazards, compliance with fire safety standards and liquidation of the emergency consequences.

143. Bunkering operations shall be carried out in compliance with the International Maritime Organisation (IMO) recommendations for safe transportation of dangerous cargoes and related activities in the Port.

144. Bunkering operations may commence if a bunkering safety check-list (*bunkering safety check-list*) has been duly completed and signed by both parties.

11. Environmental protection

145. Only toilets fitted with an enclosed sewage storage tank or sewage treatment plant complying with the requirements of the MARPOL Convention are permitted on board the ships in the Port water area.

146. Acceptance of ship waste at the Port and payment for such services shall be carried out following the requirements of regulatory enactments and the Port Waste Management Plan.

147. Before leaving the Port, the ship shall deposit all ship's waste, including cargo residues, on board the ship at the Port's waste reception facilities following the provisions of the regulatory enactments on the procedure for acceptance of ship's waste and the Ship's Waste Management Plan and in line with the requirements of the MARPOL Convention.

148. Ships entering the Port for recycling shall deposit all ship's waste, including cargo residues on board, at the Port's waste reception facilities following the provisions of the regulatory enactments on ship's waste reception procedures.

149. Recycling of ships prior to the transfer of all ship's waste can only be started with the permission of OKD and the LSEZ Safety, Security and Environment Department and by enclosing the ship to be recycled with booms.

150. Hull cleaning and painting is prohibited while the ship is at berth or at anchor, except in specially equipped areas in ship repair yards and workshops.

151. at the berths and terminals handling petroleum products or noxious liquid substances listed in Annexes I and II to MARPOL, the equipment for the recovery of such substances shall be in permanent readiness in accordance with the berth or terminal pollution contingency plan.

152. Each berth where oil products are handled shall be equipped with oil absorbers capable of absorbing at least 1 m^3 of oil products and a skimmer with a capacity of not less than 20 m^3/h. The berth or terminal operator shall be responsible for compliance with the relevant requirements.

153. Transshipment of petroleum products and noxious liquid liquids listed in Annexes I and II to MARPOL at berths or terminals shall be carried out in accordance with their technical operating rules. Prior to commencement of cargo operations, tankers in the Trade Canal intending to tranship petroleum products shall be enclosed with booms. At all other times, booms, oil and hazardous liquid recovery equipment must be prepared in accordance with the berth or terminal contingency plan.

154. Before commencing transshipment of oil products, the Master of the vessel must:

154.1 Check the security of communications between the ship and the cargo

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operator, the ship and the oil recovery vessel, the ship and the KSD;

154.2 Ensure that the ship's crew is prepared to meet all environmental protection requirements in line with the International Safety Guide for Oil Tankers and Terminals (ISGOTT).

155. During the transshipment of oil products, the deck drains must be closed.

156. If a spillage of dangerous or polluting cargoes (including oil) occurs on deck or overboard during cargo handling, cargo operations must be stopped immediately. The Master of the vessel must immediately notify the cargo operator, the KSD, the Port Guard and the State Environmental Service. Further action shall be taken following the Contingency Plan for Pollution in the Port of Liepaja.

157. When carrying out cargo operations, there is an obligation to comply with environmental protection requirements set out in Article 24.[2] of the Law on Pollution, which defines specific requirements regarding polluting activities.

12. Restrictions in the Port territory

158. It is prohibited to wash the deck and hull, to discharge overboard any oily waters, including oily ballast water, hazardous substances, noxious substances and their mixtures, untreated sewage, any cargo residues. Valves in pumping systems for oil, water containing hazardous substances, runoff water and untreated wastewater must be closed and sealed.

159. Conditions for the use of ship exhaust gas treatment plants in the Port territory:

159.1 Closed-type flue-gas cleaning installations may be used by ships throughout the Port territory;

159.2 The ship may use the open-type flue-gas cleaning equipment in the outer roadstead, whereas in other Port areas the ship shall use MARPOL-compliant marine fuel with a sulphur content not exceeding 0.10 per cent by mass;

159.3 Ships fitted with hybrid type flue gas cleaning appliances may use them in open type mode in the outer roadstead and in closed type mode in the rest of the Port territory.

160. Use of preparations that dissolve or sink floating oil products is prohibited.

161. Swimming is prohibited, except:

161.1 From the Southern Breakwater of the Port toward the south;

161.2 From the Northern Breakwater of the Port toward the north.

162. It is prohibited to engage in any type of fishing, except for the places marked on the map "Land and water areas of the Port of Liepaja accessible to anglers", published on the website of the Authority.

163. Angling is prohibited except:

163.1 Throughout the calendar year – from the Southern Breakwater, from the Northern Breakwater, in the outer roadstead, excluding fairways and anchorages;

163.2 From 1 April to 30 November – from the unrestricted part of the bank of the Karosta Canal.

164. The map "Land and water areas of the Port of Liepaja accessible to anglers" is published on the website of the Authority.

165. It is forbidden to engage in any form of water sports without the permission of the Harbour Master.

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166. Preparation of the hull for painting and its painting at an unauthorised place is prohibited.

167. The berth operator shall be responsible for removing from the berth any marine litter resulting from cargo operations or repairs.

168. No economic activity may commence at berths or terminals handling petroleum products or noxious liquid substances listed in Annexes I and II to MARPOL Convention or in other sensitive cargo handling areas prior to approval of the pollution contingency plan by the State Environmental Service and the Authority.

169. Dust-causing loads shall be loaded in accordance with the wind speed and direction specified in the permit for polluting activities. If the permit does not specify permissible wind speeds and directions and if the berth is not equipped with an enclosed loading/unloading system, stowage of dust-generating cargo shall be suspended when the wind speed reaches 10 m/s.

170. Owner of the responsible vessel shall cover the losses caused to the environment that have occurred because of unlawful acts of the ship's crew, such as oil spills, dumping of waste, cargo spills or dumping. Any damage caused by the berth operator shall be covered in accordance with the laws and enactments of the Republic of Latvia.

13. Customs, border guards and sanitary regime

171. Inspections of individuals and vessels at the Port are carried out by the State Border Guard and the Food and Veterinary Service in accordance with their competence, following the inspection technology of the Port of Liepaja border crossing point. Customs control is carried out by officials of the customs office of the State Revenue Service.

172. The sanitary regime in the Port is determined by the laws and enactments of the Republic of Latvia on the protection of public health.

173. In order to prevent or reduce risks to public health, the Health Inspectorate, in line with its competence, monitors and controls compliance with regulatory enactments in the field of epidemiological safety and environmental health, safety of drinking water, trade and professional use of chemicals and chemical products, as well as assesses compliance with regulatory enactments and potential risks to public health in the Port.

174. The Health Inspectorate carries out a hygiene assessment of the ship in line with the International Health Regulations.

175. The berth operator shall be responsible for maintaining the sanitary and hygienic condition of the berth in accordance with the regulatory enactments.

176. The use of water from the Port or other berth water areas as drinking water is prohibited.

177. If evidence of a public health hazard is detected on board a ship or in the Port territory, the Master, owner, operator, ship's agent or OKD shall act immediately in line with the laws and regulations on public health protection measures and the Port formalities and the laws and enactments on international health protection regulations.

14. Ship, port and port facility security

178. Protection of ships, port and port facilities in the Port is ensured by the possessor, owner or lessee of each individual territory in accordance with the Port of Liepaja Regime Regulations approved by the Authority and international, European Union and Latvian legislation concerning protection of ships, harbours and port facilities.

179. The general procedure of the passage regime in the Port territory, the

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procedure of road and pedestrian traffic is determined by the Port of Liepaja Regime Regulations approved by the Authority.

180. People and land vehicles may enter or leave the restricted areas in the Port only through the appropriate checkpoints. The checkpoint regime at each terminal is ensured by its operator.

181. Any individual in the Port territory must have an identification document. The identification document must be presented upon request by a Port Security Officer, port facility security personnel, border guards, customs or the OKD staff.

182. The crew members of the vessels and their relatives may be present in the Port territory in accordance with the provisions of Regulations No 2016/339 of the European Parliament and of the Council of 9 March 2016 on the Union Code on the rules governing the movement of persons across borders (Schengen Borders Code), the Immigration Law and the Port of Liepaja Regime Regulations approved by the Authority.

183. Any individual who fails to comply with the requirements of the Port Security Officer, Port Facility Security personnel, border guard or customs shall be detained and/or expelled from the Port territory.

184. If a vehicle in the Port territory may endanger individuals, vessels, Port facilities or the Port security system, the Port Security Officer is authorised to evacuate the vehicle from the Port at the expense of the vehicle owner.

185. Mooring or re-mooring of a vessel from/to a Port facility which does not have a valid Port Facility Security Compliance Approval may only be carried out with the approval of the Port Security Officer.

186. The berth operator shall coordinate the deployment of technical security equipment in the Port territory with the Port Security Officer.

15. Port charges and paid services

187. In accordance with the Law on Ports, the Port Authority determines and approves the threshold levels of the Port fees and tariffs for services by publishing same in the official gazette “Latvijas Vēstnesis” and on the website of the Authority.

188. All Port dues and fees for services rendered to the vessel shall be paid in full following the payment procedures established by the Authority prior to the vessel departure from the Port.

189. The ship’s agent shall be fully responsible for the collection of Port fees and service charges from shipowners or charterers and ensures their payment to the Authority or to business operators in accordance with the tariffs set by the Authority.

190. Vessels entering the Port shall pay the navigation service fees to the Maritime Administration in accordance with the Law on Ports and the regulatory enactments concerning the price list of the Maritime Administration’s paid services.

16. Liability for non-compliance with the Port Regulations

191. The Authority shall not be liable for any damage caused by the acts or omissions of a third party.

192. For violation of these Regulations, natural persons and legal entities shall be held administratively liable under the regulatory enactments regulating the relevant sector.

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17. Final provisions

193. The Liepaja City Council Binding Regulations No. 22 “Liepaja Port Regulations” of 22 November 2018 (Latvijas Vēstnesis, 2018, No 245) shall be null and void.

Chairperson Gunārs Ansiņš

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ANNEX
to the Binding Regulations No. 30
of 22 August 2024
of the Liepāja State City Municipal Council

TECHNICAL PARAMETERS OF BERTHS

Berth No.	Berth length (m)	Designed berth depth (m) BAS	Designed berth depth (m) LAS	Berth No.	Berth length (m)	Designed berth depth (m) BAS	Designed berth depth (m) LAS
5.	128,0	8,5	8,3	**59.**	153,0	7,1	6,9
12.	98,5/83,8	8,5	8,3	**60.**	198,0	7,1	6,9
14.	108,9/103,	8,5	8,3	**61.**	210,8	7,1	6,9
16.	111/116	8,5	8,3	**62.**	145,0	7,0	6,8
17.	183,5	4,9	4,7	**63.**	145,0	7,0	6,8
18.	213,4	4,9	4,7	**64.**	176,5	7,0	6,8
19.	381,7	4,9	4,7	**65.**	119,6	5,5	5,3
20.	83,8	5,0	4,8	**66.**	120,0	5,95	5,75
21.	103,5	4,0	3,8	**67.**	120,0	6,0	5,8
22.	180,3	8,0	7,8	**68.**	120,0	5,95	5,75
25.	89,5	9,5	9,3	**69.**	120,0	5,95	5,75
26.	45,7	4,5	4,3	**70.**	120,0	5,95	5,75
27.	35,2	8,0	7,8	**71.**	120,0	5,95	5,75
28.	32,5	7,0	6,8	**72.**	134,0	5,95	5,75
30.	89,6	7,5	7,3	**73.**	101,91	7,4	7,2
30 A	80,0	6,5	6,3	**74.**	134,0	7,4	7,2
40.	171,0	7,9	7,7	**75.**	134,0	7,4	7,2
41.	171,0	7,9	7,7	**76.**	134,5	7,4	7,2
42.	174,4	8,0	7,8	**80.**	136,3	4,8	4,6
43.	412,0	10,5	10,3	**81.**	94,0	6,0	5,8
44.	180,0	10,5	10,3	**82.**	118,0	6,0	5,8
45.	189,7	10,5	10,3	**83.**	144,0	5,0	4,8
46 Z	204,5	10,5	10,3	**84.**	150,0	5,5	5,3
46 D	181,0	10,5	10,3	**85.**	50,8	5,8	5,6
46 W	51,5	10,5	10,3	**86.**	24,0	5,8	5,6
49 Z	129,0	12,0	11,8	**87.**	137,5	5,8	5,6
49 D	129,0	12,0	11,8	**88.**	140,0	5,8	5,6
50.	198,3	10,5	10,3	**89.**	132,0	4,2	4,0
51.	195,0	12,0	11,8	**90.**	100,5	4,3	4,1
51 A	118,3	12,0	11,8	**91.**	99,4	4,5	4,3
54	120	14,0	13,8	**92.**	103,0	5,0	4,8
56.	105,0	5,5	5,3	**93.**	179,0	3,8	3,6
57.	149,9	7,1	6,9	**93 A**	45,3	4,3	4,1
58.	153,0	7,1	6,9	**94.**	104,7	6,2	6,0

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